

25STCV19094 25STCV19094

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-07-27

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Case Number: 25STCV19094 Hearing Date: July 27, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

KEVIN IP, an individual and as trustee of the Ip Residence

Trust (A),

Plaintiff,

vs.

YUNA CHEN, et al.,

Defendants.

Case No.:

23STCV27529 [r/w 26PDUD00590]

Hearing Date:

July 27, 2026

Hearing Time:

10:00 a.m.

1:30 p.m.

[TENTATIVE] ORDER RE:

PLAINTIFF KEVIN IP'S MOTION FOR
SUMMARY ADJUDICATION

AND RELATED CROSS-ACTION

Background

On

November 7, 2023, Plaintiff Kevin Ip as an individual and as trustee of the Ip Residence Trust (A) ("Ip") filed a complaint against Defendants Yuna Chen ("Chen"), Wendy Trinh Tran ("Tran") (jointly, "Defendants"), and all persons unknown claiming an interest in the property at issue alleging four causes of action for (1) quiet title, (2) elder abuse, (3) conversion, and (4) breach of contract.

On

February 9, 2024, Defendants filed a cross-complaint against Ip and all persons unknown claiming an interest in the property at issue. On July 26, 2024, Defendants filed a first amended cross-complaint alleging (1) quiet title, (2) breach of contract and specific performance, (3) fraud, (4) declaratory relief, (5) trespass, (6) intentional infliction of emotional distress, and (7) breach of contract and specific performance. On February 28, 2025, the Court sustained Ip's demurrer to the second cause of action without leave to amend. On July 10, 2026, Defendants filed a second amended cross-complaint ("TACC") alleging the same causes of action as in the first amended cross-complaint, plus the addition of a fraudulent conveyance cause of action.

Ip

now moves for summary adjudication as to his first and fourth causes of action for quiet title and breach of contract, respectively, as well as Defendants' first, third, and fourth causes of action for quiet title, fraud, and declaratory relief. Defendants oppose. Ip replied.[1]

Allegations

of the Complaint

The complaint alleges, inter alia, that Ip took title to the property located at 412 N. San Marino Ave., San Gabriel, California (the "Property") pursuant to a grant deed dated December 13, 1997. (Compl., ¶¶ 1, 14.) "Ip transferred title to the Kevin Ip Family Trust dated July 19, 2007, by grant deed dated July 19, 2007. ... Ip transferred title again from the Kevin Ip Family Trust dated July 19, 2007, to the Ip Residence Trust (A), by quitclaim deed dated August 9, 2023." (Compl., ¶ 14.) The complaint alleges that "[a]round 2014, Chen and Ip became romantically involved. Chen asked Ip if he could help her find a place to rent. Ip agreed to rent the Property to Chen for \$2,000 per month." (Compl., ¶ 16.) "On October 15, 2014, Ip and Chen entered into a California Association of Realtors ('CAR') Residential Lease or Month-to-Month Rental Agreement for the Property, whereby Chen agreed to lease the Property from Ip for \$2,000 per month (the 'First Lease')." (Compl., ¶ 17.) "Ip never agreed to sell the Property to Chen and the two never entered any agreement whereby Chen would obtain any ownership interest in the Property." (Compl., ¶ 16.) "When the First Lease terminated on October 31, 2019, Chen stayed in the Property with her daughter, Tran. On February 25, 2021, Chen signed a second CAR Residential Lease or Month-to-Month Rental Agreement that raised her rent for the Property to \$2,800 per month (the 'Second Lease')." (Compl., ¶ 22.)

The complaint alleges that "[a]s Ip grew older, Chen and her daughter, Tran, took advantage of Ip through the use of affection and coercion and wanted Ip to treat them more as his family than his tenants. Chen and Tran stopped paying rent, and has not paid Ip for more than 24 months of back rent since she has lived in the Property, convinced Ip to pay their debts and expenses, and exerted undue influence over Ip to convince him to give Tran and Chen cash, gifts, and property for their personal benefit." (Compl., ¶ 23.) "In or around January 2023, Ip and Chen's romantic relationship began to end. At that time, Tran and Chen began to tell Ip that he was no longer allowed to come to the house and that Chen somehow owns the Property, not Ip. Chen now seeks to exclude Ip from possession of the house, claims to own the Property, and has demanded that Ip transfer title of the house to Chen." (Compl., ¶ 31.) The complaint alleges that "Ip now seeks a determination of his interests to the Property and to stop Chen and Ip from continuing to abuse Ip and take financial advantage of him." (Ibid.)

Allegations
of the TACC

Defendants' TACC alleges that "[i]n 2014, YUNA CHEN was getting a divorce after a 23-year marriage. As an immigrant with limited English ability and with little knowledge of business matters, YUNA CHEN was striking out on her own after being a full-time homemaker, and relying on her husband to handle all the business matters for the family during their marriage, which spanned her adult life. Her former husband agreed to pay her \$560,000 as their divorce settlement only if she used such funds to buy a home as a stable base and shelter for herself and her two children." (TACC, ¶ 10.) "As YUNA CHEN was looking for her next house, her friend KEVIN IP offered to help. She understood KEVIN IP was a well-regarded attorney and businessperson in the local Chinese and Buddhist community in the San Gabriel Valley – this was his reputation according to her knowledge at the time." (TACC, ¶ 11.)

Chen and Kevin Ip "were not a couple." (TACC, ¶ 15.) Ip represented to Chen "that he was the trustee for a wealthy man from Singapore, who owned several properties in the area, including in desirable areas such as San Marino. According to Kevin, one such property was a single family home at 412 N. San Marino Avenue, San Gabriel, CA ('Property'), which he said could be vacated for Yuna to buy and live in." (TACC, ¶ 14.)

"Kevin Ip told Yuna to make an offer to the 'Singapore owner' to buy the Property, and Kevin (as the trustee) would help get it accepted, as he was authorized to act for the owner." (TACC, ¶ 16.) "Kevin Ip told her 'the owner' accepted her proposal and would sell her the Property for \$680,000 under the following terms: a) Yuna would pay a down payment of \$560,000, then pay rent for \$2,000 per month, as a trial period; b) Yuna would pay monthly installments of \$2,800 until she paid a total of \$680,000, since Yuna lacked sufficient credit history and stable income record to qualify for a bank loan; and, c) Yuna would pay the property taxes and certain utilities during the purchasing period ('Purchase Agreement'). He claimed he would arrange the paperwork for the purchase and he would transfer the title later after she paid the full purchase price of \$680,000." (TACC, ¶ 18.)

"In September 2014, before she moved into the Property,

Kevin Ip asked Yuna to put the terms of the Purchase Agreement in an email for him to confirm the terms they had agreed on. He dictated the language she should write, and directed Yuna to email Kevin in Chinese, setting forth the deal terms to Kevin's email address –.” (TACC, ¶ 21.) “On the basis of the foregoing agreement, and in reliance thereon, YUNA CHEN took the following actions, to her detriment: a) Yuna paid him the \$560,000 down payment on or about November 6, 2014; b) moved into the Property as her home, and later her children moved in; c) she made several improvements to the Property; and, d) she paid \$2,000 per month during the rental period, from 2015 – 2017.” (TACC, ¶ 22.) “Beginning in August 2017, Kevin Ip told her the rental period ended and the installment purchase period started.” (TACC, ¶ 23.) “Yuna paid Kevin Ip monthly installments of \$2,800 toward the agreed purchase price of \$680,000, starting on August 25, 2017, and continuing for almost six years, with some gaps during COVID-19. In total, she has paid him more than \$810,000 for the Property.” (TACC, ¶ 23(b).) “YUNA also paid \$3,000 to \$3,500 for property taxes twice a year at his direction, from October 2017 to the present.” (TACC, ¶ 25.) “By June 25, 2022, Yuna had fully paid Kevin Ip the purchase price under the Purchase Agreement.” (TACC, ¶ 26.)

“In 2022 and 2023, Kevin Ip kept promising to convey the title to her. ... In July 2023, when Yuna demanded the title be transferred, Kevin Ip became violent, irrational, threatening and this is the first time he repudiated the purchase agreement.” (TACC, ¶ 28.) “By a letter dated September 1, 2023, YUNA CHEN's attorneys demanded performance by Kevin Ip, who refuses to convey title to her. Instead, he has filed a lawsuit against her for Unlawful Detainer.” (TACC, ¶ 33.)

Evidentiary

Objections

Previously,
the Court continued the hearing and ordered the parties to meet and confer to limit the voluminous number of evidentiary objections. (Order 2/20/26.) In the Court's Order from the hearing on objections, it stated that “no new evidence or new argument is to be submitted unless it is as a result of compromises reached during the meet and confer process.” (Order 2/20/26, 2:5-7 [emphasis omitted].) On March 4, 2026, the parties filed a joint statement regarding the evidentiary objections. Then, on March 16, 2026, Ip filed an objection to additional evidence Chen filed. Ip asserts that on February 20, 2026, Chen

filed a notice of lodging with a USB drive containing video evidence, and on March 12, 2026, Chen served Ip with “transcripts of the video evidence that defendant improperly lodged with the Court on February 20, 2026. Plaintiff objects to the additional evidence submitted by defendant in violation of this Court’s Order.” (Ip’s Obj. 3/16/26, 2:15-16.) The Court’s docket does not contain a filing indicating that a video was lodged, nor does it have a filing with the transcript.

The lodged evidence appears to be a video Chen linked in her declaration (Chen Decl., Ex. 7) but failed to timely lodge with the Court and provide a transcript for, as required by California Rules of Court, rule 2.1040(b)(1). (See Cal. Rules of Court, rule 2.1040(b)(1) [“before a party may present or offer into evidence any electronic sound or sound-and-video recording not covered under (a), the party must provide to the court and to opposing parties a transcript of the electronic recording and provide opposing parties with a duplicate of the electronic recording, as defined in Evidence Code section 260.”].) The Court notes that “[f]or good cause, the trial judge may permit the party to provide the transcript or the duplicate recording at the time the presentation of evidence closes or within five days after the recording is presented or offered into evidence, whichever is later.” (Cal. Rules of Court, rule 2.1040(b)(2).) However, Chen does not explain the failure to timely lodge the documents, so the Court declines to exercise discretion to apply the good cause exception.

The Court rules as follows on Ip’s evidentiary objections:

Objection Nos. 15, 22,
30, 31: overruled

Objection Nos. 1, 2, 5-7, 12,
18 (as to text messages only; otherwise overruled), 26-28, 36: sustained

Objection Nos. 3, 4, 9-11,
13, 14, 16, 17, 20, 21, 29, 32-35: withdrawn

Objection
No.

8: sustained as to "... purchase payments and property tax payments ... toward the purchase of this house" only

Objection

No.

19: overruled[2]

Objection

No.

23: overruled[3]

Objection

No.

24: overruled[4]

Objection

No.

25: sustained as to "Wendy was also aware of the purchase" only

Request

for Judicial Notice

The Court grants Ip's request

to take judicial notice of Exhibits A, B, C, D, and E.

Ip requests the Court

take judicial notice of the following:

1.

The Grant Deed for 412 N. San Marino Ave., San Gabriel, California, 91755, APN 5366-025-002, Document No. 972034681, recorded December 13, 1997.

2.

The Grant Deed for 412 N. San Marino Ave., San Gabriel, California, 91755, APN 5366-025-002, Document No. 20071799021, recorded July 19, 2007.

3.

The Quit Claim Deed for 412 N. San Marino Ave., San Gabriel, California, 91755, APN 5366-025-002, Document No. 20230541855, recorded July August 16, 2023.

4.

The verified cross-complaint filed by defendants Yuna Chen and Wendy Tran on February 9, 2024.

5.

The amended verified cross-complaint filed by defendants Yuna Chen and Wendy Tran on July 26, 2024

Legal Standard

“[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) A triable issue of material fact exists if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. (Ibid.)

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467; Code Civ. Proc., § 437c, subd. (c).)

A motion for summary judgment or adjudication's function is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co., supra, 25 Cal.4th at p. 843.) In analyzing such motions, courts must apply a three-step analysis: “(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue.” (Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294.) Summary judgment or adjudication is proper when “all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code

Civ. Proc., § 437c, subd. (c); see also Villa v. McFerren (1995) 35 Cal.App.4th 733, 741.)

The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (Aguilar v. Atlantic Richfield Co., supra, 25 Cal.4th at p. 850.) As to each claim as framed by the complaint, the defendant moving for summary judgment or adjudication must satisfy the initial burden of proof by presenting affirmative evidence to disprove at least one essential element of the plaintiff's cause of action, show that an element cannot be established, or to establish an affirmative defense. (Code Civ. Proc., § 437c, subd. (p)(2); Sanchez v. Swinerton & Walberg Co. (1996) 47 Cal.App.4th 1461, 1465.)

Once the moving defendant meets its burden for a particular cause of action, the burden shifts to the nonmoving plaintiff. (Code Civ. Proc., § 437c, subd. (p)(2).) The plaintiff may defeat the motion by producing evidence showing that a triable issue of one or more material facts exists as to that cause of action. (Ibid.)

On a motion for summary judgment or adjudication, the moving party's supporting documents are strictly construed, while the nonmoving party's documents are liberally construed. (D'Amico v. Board of Medical Examiners (1974) 11 Cal.3d 1, 24.) Any "doubts as to the propriety of granting the motion should be resolved in favor of the party opposing the motion." (Ibid.)

Discussion

Ip moves for summary adjudication on the first and fourth causes of action on his complaint and on the first, third, and fourth causes of action on Defendants' TACC.

A. Undisputed Facts

Both the complaint and cross-complaint pertain to real property located at "412 N. San Marino Ave., San Gabriel, California, 91755, APN 5366-025-002 (hereinafter the 'Property'), more particularly described as follows: Lot 2 of Tract No: 9223, as per map recorded in Book 148 Pages 13 and 14 of Maps, in the Office of the County

Recorder of Los Angeles County.” (UMF ¶¶ 1, 69; Ip

Decl., ¶ 2.) The parties do not contest the existence of the December 1997 grant deed, July 2007 grant deed, and August 2023

quitclaim deed. (UMF, ¶¶ 2-4, 70-72.) Chen and her children moved into the

Property in October 2014 and paid rent until mid-2017. (UMF, ¶¶ 14, 17.)

Chen did not know she was

in a UPS office, instead of an escrow office, where the parties notarized a

document, the purpose of which is disputed by the parties. (UMF, ¶¶ 35-37,

53-54.) Chen's two children worked at the GNC store, which went bankrupt in

2020. (UMF, ¶¶ 45-46, 63-64.)

B.

Quiet Title

Both

Ip and Defendants allege quiet title as their first cause of action in the complaint and TACC.

An

action for quiet title seeks “to establish title against adverse claims to real or personal property or any interest therein.” (Code

Civ. Proc., § 760.020, subd. (a).) In an action for quiet title, Plaintiff

must plead (1) “[a] description of the property that is the subject of the

action,” specifically the location of tangible personal property and the legal description and street address or common designation of real property, (2)

“[t]he title of the plaintiff as to which a determination under this chapter is

sought and the basis of the title,” (3) “[t]he adverse claims to the title of

the plaintiff against which a determination is sought,” (4) “[t]he date as of

which the determination is sought,” and (5) “[a] prayer for the determination

of the title of the plaintiff against the adverse claims.” (Code Civ. Proc., § 761.020, subds. (a)-(e).)

Ip

contends that Defendants' cause of action is “barred by the applicable

three-year statute of limitation.” (Mot., 1:26.) Ip contends that “the

underlying theory of relief is defendant Chen's claim for fraud,” which has a

three-year statute of limitations. (Mot., 15:7-8.) However, Ip does not

support his position for why Defendants' quiet title's underlying theory of

relief is Ip's alleged fraudulent activity as opposed to full performance of an

agreement to purchase the property. Moreover, as discussed infra,

summary adjudication for fraud based on the statute of limitations is not granted.

With

respect to the elements of the quiet title cause of action, Ip attaches Defendants' responses to special interrogatories, where Defendants concede that Ip is the Property's owner. (Azat Decl., ¶¶ 2-3, Ex. A, 2:12, Ex. B, 2:13.) It is undisputed that Defendants did not plead in the TACC that Chen made a written purchase agreement for the Property, suggesting that there was no transfer of title promised or pending. (UMF, ¶¶ 9, 77, 133.) The discovery responses and the affirmative evidence that Chen did not make a written purchase agreement indicate that Ip meets his initial burden demonstrating that Defendants cannot establish the essential element of Chen's title or interest in the Property.

Defendants

note that although Ip is the owner of record, whether Ip is the rightful owner is disputed. Defendants present evidence that Chen offered to buy the Property for \$650,000 and agreed to various terms with Ip regarding the property. (Chen Decl., ¶ 8.) The agreement between Chen and Ip was verbal, but Ip dictated the words Chen should write down in an email addressed to him to confirm the terms of the purchase agreement. (Chen Decl., ¶ 9; Ex. 1.) Chen explains that Ip dictated the words in the email and Ip "confirmed receipt and his assent verbally to" Chen. (Ibid.) The confirmation email of Chen and Ip's agreement states, inter alia, "[p]lease help transfer the house to me within five years at the price of 680,000." (Chen Decl., ¶ 9; Ex. 1.)

Defendants

also present evidence that Ip told Chen she was signing legal documents for the purchase agreement in December of 2014, which referred to the \$560,000 down payment for the Property. (Chen Decl., ¶ 11.) However, Chen instead signed an indemnification agreement. (Ibid.) Due to Chen's limited understanding of English, she was unaware of the document's true nature because Ip did not provide Chen with a translation or copy of the agreement. (Ibid.) Additionally, Defendants provide evidence of a chart of payments Chen sent to Ip, which includes a check payment in the amount of \$560,000, made to Ip in 2014. (Chen Decl., Ex. 6.) Defendants also provide evidence that Chen paid property tax bills for the property. (Chen Decl., Exs. 2 & 3.) The presented evidence demonstrates that the true owner of the property is still in dispute.

Ip

also asserts that summary adjudication is proper for quiet title because the property is held in an irrevocable trust. (Ip Decl., ¶ 5, Exs. C, I.) However, Defendants dispute the validity of the transfer. Chen “laid claim to the Property under a constructive trust due to Kevin Ip’s fraud.” (Chen Decl., ¶ 23.) Additionally, Defendants point to the lis pendens they filed on the property, which contests Ip’s title and right to the property. (Chen Decl., ¶ 23, Ex. 8.) Although Ip transferred the property to an irrevocable trust, Civil Code section 3439.04, subdivision (a)(1), provides

that a “transfer made or obligation incurred by a debtor is voidable as to a creditor, whether the creditor’s claim arose before or after the transfer was made or the obligation was incurred, if the debtor made the transfer or incurred the obligation ... [w]ith actual intent to hinder, delay, or defraud any creditor of the debtor.” The dispute over the validity of the transfer does not make summary adjudication proper based on the Property being held in an irrevocable trust.

Accordingly,

trialable issues of material fact as to the quiet title cause of action persist in both the complaint and TACC. Ip’s motion for summary adjudication is denied as to this cause of action.

C.

Breach of Contract

Ip

alleges breach of contract as his fourth cause of action in the complaint. To state a cause of action for breach of contract, Plaintiff must be able to establish “(1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.)

Ip’s

cause of action for breach of contract arises from the indemnification agreement the parties entered into, where Chen “agreed to indemnify, release, and hold harmless Ip from any and all future claims or liabilities that may arise from her payment of \$560,000 to Ip for investment purposes.” (Compl., ¶ 56.)

Ip

points to the existence of the indemnification agreement, which states that “[o]n November 5th, 2014, YUNA CHEN issued a bank check # 103 in the amount of \$560,000.00. The subject instrument was made payable to Kevin Ip.” (Ip Decl., ¶ 11, Ex. F, IP000529.) The woman who notarized the agreement attests that “Yuna Chen presented herself before me on December 10, 2014, confirmed her identity to me, and executed in my presence two documents entitled ‘Indemnification.’” (Osorio Decl., ¶ 4; Ex. A.)

However,

Defendants point to Chen’s declaration, which, as noted above, states that she did not read the document because it was in English, which she has very limited knowledge of and did not receive a translation of. (Chen Decl., ¶ 11.) Chen attests that Ip “claimed I had to sign legal documents for the Purchase Agreement at what he called an ‘escrow office’. I signed what I understood was purchase paperwork before a notary, which referred to the \$560,000 down payment for the Property.” (Ibid.) Chen also attests that “[t]he \$560,000 was solely for the purchase of the Property and I have never asked or allowed Kevin Ip to invest any money for me in any other way. I would never invest in Kevin Ip’s GNC franchise, or in the Chinese stock market, as he claims now.” (Chen Decl., ¶ 12.) Chen’s special interrogatory responses also state that the indemnification agreement was for the purchase of the property, and she did not know the true purpose of it.” (Azat Decl., Ex. A, 15:12-14.)

Defendants

demonstrate a triable issue of material fact because if Ip fraudulently induced Chen to sign the indemnification agreement, then the agreement would be invalid. Under California law, “[a]ll contracts which have for their object, directly or indirectly, to exempt any one from responsibility for his own fraud, or willful injury to the person or property of another, or violation of law, whether willful or negligent, are against the policy of the law.” (Civ. Code, § 1668.) Accordingly, summary adjudication is not proper here.

D.

Fraud

Defendants allege fraud as their third cause of action in the TACC. “The elements of fraud are (a) a misrepresentation (false representation, concealment, or nondisclosure); (b)

scienter or knowledge of its falsity; (c) intent to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294.) “The statute of limitations for fraud is three years.” (Cansino v. Bank of America (2014) 224 Cal.App.4th 1462, 1472.)

Ip

contends that Defendants’ “fraud claim is barred by the th[r]ee-year statute of limitations.” (Mot., 15:26.) Ip asserts the statute of limitations defense based on three alternative timelines Chen has advanced, as follows. First, if Chen had paid rent from the move-in date of 2014 to mid-2017, made a down payment and periodic payments to purchase the Property, she would have completed her payments by January 2021. (Mot., 15:27-16:3.) Second, if Ip had transferred title to Chen five years after she moved in, according to Chen’s testimony, title would have transferred in October 2019. (Mot., 16:8-13.) Finally, if Ip had transferred title to Chen after the initial two-year rental period, which ended mid-2017, title would have transferred sometime in June 2019. (Mot., 16:14-19.) Ip maintains that “[b]y her own verified allegations and testimony, Chen’s fraud claim accrued in 2019 and is time barred” in all instances. (Mot., 17:9-10.)

Notably,

Ip’s statute of limitations argument contradicts the first timeline Ip presented, where Chen completes her payments by January 2021. If Chen completed payments by January 2021, filing the cross-complaint in February 2024 does not appear to be barred by the statute of limitations because the clock begins running when Chen discovers the alleged fraud. “An action for relief on the ground of fraud ... is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake. (Code Civ. Proc., § 338, subd. (d).) Defendants’ TACC specifically pleads that “[a]fter she fully paid him for the purchase, YUNA CHEN discovered the deceit and wrongs by Kevin Ip...” (TACC, ¶ 50.) Additionally, Defendants note that the five-year deadline for Ip to transfer title to Chen was the initial projection, but the agreement changed in late 2017, and Ip agreed to convey title when the purchase price was paid. (Chen Decl., ¶ 14.) Chen began to pay the balance to purchase the Property in 2017. (Azat Decl., Ex. G, Chen Depo., 77:13-21.) Chen attests that some payments for purchase were missed during the COVID-19 pandemic. (Chen Decl., ¶ 14; Azat Decl., Ex. G, Chen Depo., 83:2-5.) Evidence that Chen did not make uninterrupted monthly payments and the changed agreement

regarding when the Property would be transferred raises a triable issue of material fact as to whether the fraud cause of action is barred, since the statute of limitations did not clearly expire before filing the cross-complaint. Accordingly, the motion for summary adjudication is denied as to this cause of action.

E.

Declaratory Relief

The

fourth cause of action of Defendants' TACC seeks declaratory relief. "To qualify for declaratory relief, a party would have to demonstrate its action presented two essential elements: (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the party's rights or obligations." (Jolley v. Chase Home Finance, LLC (2013) 213 Cal.App.4th 872, 909 [quotation marks and brackets omitted].) A cause of action for declaratory relief should not be used as a second cause of action for the determination of identical issues raised in another cause of action. (General of America Ins. Co. v. Lilly (1968) 258 Cal.App.2d 465, 470.)

The

TACC states that a "judicial declaration is necessary to determine the rightful ownership and possession of the Property as between Yuna Chen and Cross-Defendants." (TACC, ¶ 58.)

Ip contends that "the Court should

enter judgment in favor of plaintiff and against defendants on Chen's fourth cause of action for declaratory relief because Ip holds legal title to the Property and defendants cannot show by showing clear and convincing evidence that defendants have any ownership interest in the Property." (Mot., 17:19-22.) Although the Court granted judicial notice of the two grant deeds and one quitclaim deed, judicial notice is used only to demonstrate the existence of a document, not the content contained therein. Ip also attaches the deeds to his declaration in support of the instant motion, but as discussed above, Defendants dispute ownership. (See Ip Decl., ¶¶ 3-5; Exs. A-C.) Defendants contend that although Ip is the owner of record, Chen is the rightful owner. (Chen Decl., ¶ 36; Azat Decl., Ex. A, 2:22-24.) In other words, Chen retains an interest in the Property, and declaratory relief is not proper at this time. Accordingly, triable issues of material fact remain as to Defendants' declaratory relief cause

of action. Accordingly, the motion for summary adjudication is denied.

Conclusion

Based

on the foregoing, Ip's motion for summary adjudication of the first and fourth causes of action in his complaint and of the first, third, and fourth causes of action in Defendants' TACC is DENIED.

Ip

is ordered to provide notice of this Order.

DATED: July 27, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court

[1]

The

hearing on this summary adjudication motion was continued by the Court and is being heard after the filing of the TACC. Because the causes of action addressed by this motion are the same as those set forth in the First Amended Complaint, the Court is treating the motion as a motion for summary adjudication of the first (quiet title), third (fraud) and fourth (declaratory relief) causes of action of the TACC.

[2] As stated in the declaration, Exhibit 3 indicates

property taxes paid to the County Tax Collector for December 2023 and April 2024, though these attachments are missing the title "Exhibit 3." (Chen Decl., ¶ 15.)

[3] Ip claims this is a contradiction of prior sworn

testimony per *D'Amico v. Board of Med. Examiners*

(1974) 11 Cal. 3d 1, 21-22, which bars testimony that contradicts a prior sworn admission made during discovery. This ruling is narrow, allowing the Court to strike statements that are directly contradictory. Ip has not cited

the contradicting testimony for reference.

[4] Ip also claims that this is a contradiction of prior sworn testimony; however, he does not cite the contradicting testimony for reference.